HH 255-26
HCHC344-25

ALLIED REGENT TRADING CC
versus
STANLEY MOYO

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION

MAFUSIRE J
HARARE, 26 November 2025

Date of reasons for judgment: 19 March 2026

Civil imprisonment

Mr B. Ziwa, for the plaintiff
Mr S. Tizirai, for the defendant

MAFUSIRE J

a Precis

[1] On 26 November 2025, during motion court proceedings, and despite some protestations by his legal practitioner who was in court, I granted an order for civil imprisonment against the defendant for ninety [90] days but suspended it on condition that he paid the plaintiff the sums of US$395 000 and US$360 000. These were the amounts the defendant had been ordered to pay the plaintiff in a default judgment by this court on 22 November 2024 which had remained outstanding despite the plaintiff's attempts at execution.

[2] Verbatim the order of civil imprisonment reads as follows:

> "1. Subject to this order, a decree of civil imprisonment is hereby granted against the defendant, STANLEY MOYO, for ninety [90] days.
>
> 2. This order for civil imprisonment is hereby suspended on condition that the defendant pays the plaintiff the sums of US395 000-00 and US$360 000-00, together with interest

on these sums at the prescribed rate from 25 October 2024 to the date of payment in full, and the plaintiff's costs of suit on a legal practitioner and client scale.

3. This order of civil imprisonment shall have effect and hold good in the event that the defendant fails and or neglects and or refuses to pay the amounts aforesaid."

[3] Instead of paying the defendant has appealed the order of civil imprisonment to the Supreme Court and asked for the full reasons for the order. In motion court on the day, I had given the brief reasons. Here now are the full reasons.

b Historical origins of civil imprisonment

[4] The civil imprisonment procedure, as an enforcement mechanism for court judgments sounding in money, apparently evolved in the common law jurisdictions, particularly England, in the mid-sixteenth century. According to an online article by one STEPHEN J. WARE[1], a professor of law at the University of Kansas, United States of America, quoting other sources, a man could not be arrested in execution of a judgment, save only in actions of trespass *vi et armis* [Latin for "by force and arms"].

[5] PROFESSOR WARE further says in that article that civil imprisonment was the common law action for injury committed by the defendant with direct force against the plaintiff's person or property. He comments that imprisonment for a judgment debt arising out of this action was probably a relic of the time when there was no clear distinction between civil and criminal law, and that over the next three hundred years or so, imprisonment was extended to more and more actions until, by the middle of the sixteenth century, it was a remedy available to enforce judgments arising out of a wide variety of actions.

c Statutory provisions

[6] Section 49[1][*b*] of the Constitution provides that every person has the right to personal liberty which includes the right not to be deprived of their liberty arbitrarily or without just cause. Without in any way delving deeply into cannons of statutory interpretation,

[1] https://kuscholarworks.ku.edu≥content

the provision prohibits arbitrary deprivation of liberty. Which means a cause or reason for the deprivation of liberty other than an arbitrary one is not unconstitutional.

[7] Section 49[2] of the Constitution provides that no person may be imprisoned merely on the ground of inability to fulfil a contractual obligation. In other words, what is prohibited is to incarcerate someone just because they cannot pay a debt. Where they can, but do not want to, there is no constitutional breach if they are gaoled for their refusal.

[8] Section 16 of the High Court Act [*Chapter 7:06*] prohibits the civil imprisonment of a judgment debtor who proves that he does not have property or means sufficient to satisfy in whole or in part the judgment debt. Verbatim, the provision reads:

> "No writ of civil imprisonment for non-payment or non-satisfaction of any judgment or decree shall be granted or issued by the High Court in cases in which the person against whom such writ of civil imprisonment is sought to be issued proves to the satisfaction of the court that he does not have property or means sufficient to satisfy in whole or in part the said judgment or decree."

[9] Thus, s 16 of the High Act above, is plainly *intra vires* the Constitution: see *Chinamhora v Angwa Furnishers [Pvt] Ltd* 1996 (2) ZLR 664 [S]. In a nutshell, it is the recalcitrant debtor who, despite an order for payment against him, refuses or neglects to pay the judgment debt.

[10] In the High Court, the civil imprisonment procedure is governed and regulated by r 73 of the High Court Rules, 2021.

d Rationale, purpose and effectiveness of civil imprisonment

[11] Civil imprisonment is a method of execution of a judgment debt. It requires proving that the debtor is not impecunious but recalcitrant or intransigent. It is designed to ensure that the relief granted by the court is enjoyed in a reasonable time. It can only be issued after proof on a balance of probabilities that the debtor is refusing or neglecting to pay when

he or she can. In *Macheka v Moyo* 2003 (2) ZLR 49 [H] the court, in relation to the analogous process of civil contempt of court, stated as follows[2]:

> "It is trite that the principal objective of civil contempt of court process is to compel, by means of personal attachment and committal to gaol, the performance of the court order. The imprisonment imposed is very often suspended pending fulfilment by the defaulter of his obligations …. …."

[12] When resorted to, civil imprisonment achieves two objectives, namely, enforcing compliance, and protecting and upholding the dignity and respect of the court: *Macheka's* case above[3].

[13] In *Trans Makgadikgadi Investments [Pty] Ltd v Magwadza* 2007 (1) BLR 777(HC) CHINHENGO J, sitting in the High Court of Botswana, said in part:

> "Execution is a process by which a judgment or order of a court is enforced and it is done by the issuance of a writ either of execution against property or of civil imprisonment or by garnishee proceeding … … …. All methods of execution are designed to ensure that the relief granted by a court is enjoyed by a judgment creditor within a reasonable time if not immediately."

[14] According to r 73 of the High Court Rules aforesaid, civil imprisonment can be resorted to where the Sheriff has rendered a *nulla bona* return of service in respect of a writ of execution against the property of the debtor. A summons for civil imprisonment must be served personally on the debtor since it is process affecting the liberty of a person: see r 15[12] of the High Court Rules and *National Insurance Company of Zimbabwe v Dhlamini* 1999 (2) ZLR 196 [HC].

e The present case

[15] After the court order by this court directing the defendant to pay the amounts aforesaid, the plaintiff unsuccessfully tried to execute against the defendant's property at the defendant's last known address. The Sheriff remarked on his return of service that he had been repelled by some vicious dogs. He sought to engage the services of the SPCA [Society for the Prevention of Cruelty to Animals] for assistance. However, the plaintiff's

[2] At p 51C.
[3] At p 51D – E

legal practitioners asked him to issue a *nulla bona* return of service in respect of the writ of execution. He obliged. Thereafter, the summons for civil imprisonment was successfully served on the defendant. From there the matter took an interesting and unusual trajectory.

[16] The summons for civil imprisonment, as prescribed by the Rules, called upon the defendant to pay the plaintiff the sums of money aforesaid, together with interest and costs, failing which he would have to appear in court, on a given date and time, to explain his default and to show cause why an order for his civil imprisonment should not be made. The summons also required him to bring evidence of his financial position and advised him that it would be in his own interest to provide the court with the evidence of his income, expenses for himself and dependants, and any other liability he might have.

[17] The summons for civil imprisonment went further to advise that the court would conduct an enquiry into his financial position after which, depending on the circumstances, it might not commit him to prison, but instead, give him time to pay, even by way of instalments. He could even approach the plaintiff ahead of the court to arrange settlement terms. The summons concluded by warning that unless the defendant paid, or failed to appear in court on the specified date, a writ of his personal attachment would be issued for his imprisonment.

[18] Incredibly, in response to the civil imprisonment summons, the defendant, through his legal practitioners, entered an appearance to defend! He acknowledged service of the summons on him on 12 June 2025.

[19] Even more incredibly, the defendant, through the same lawyers, went on to file a plea, complete with a summary of evidence and schedule of documents! Some of the averments in the purported plea were:

i/ that the plaintiff obtained a court order and writ of execution in the main matter in default;

ii/ that it was common knowledge that he had vacated [the last known address] and that therefore there had been no valid service of the summons;

iii/ that he was unaware of the vicious dogs alluded to by the Sheriff in his return;

iv/ that it was incorrect for the plaintiff to have instructed the Sheriff to issue a *nulla bona* return of service, because the Sheriff is supposed to act independently.

v/ that the defendant had certain mining equipment, which he named, which could satisfy the debt, and

vi/ that, in addition, certain lithium ore which the defendant had failed to export was also available for attachment.

[20] When the matter appeared in motion court on 9 July 2025, the defendant was represented. The court, *per* MUSHURE J, did not immediately issue an order for civil imprisonment. Instead, it directed the defendant to disclose within three [3] days of the order, the precise location for his assets which he had mentioned in the putative plea aforesaid, failing which the plaintiff would be at liberty to cause the matter to be re-set down for the hearing of the civil imprisonment matter in terms of the Rules.

[21] On the next motion court date, 25 November 2025, I was presiding. Upon perusal of the record, I noticed that not only had the defendant failed to act in accordance with the time limits prescribed by the order by MUSHURE J aforesaid, but also that even when he pretended to do so, the effort was patently half-hearted and evidently meant to give the plaintiff the run-around. In particular, where the court order of 9 July 2025 gave him three [3] days, it was not until 23 July 2023 that his lawyers wrote to the plaintiff's lawyers with some imprecise address for some place somewhere in Mutoko District, Mashonaland Central Province, where it was said the assets could possibly be found. Apparently this was some mining location. A copy of some registration certificate for the purported mining location from the Ministry of Mines was attached.

[22] The record further indicated that the plaintiff's officials went to the purported address but could not locate it. They subsequently enlisted the help of officials from the Ministry of Mines who accompanied them to the alleged site. However, none of all that bore any fruit. The assets in question – allegedly two earthmoving equipment comprising an excavator and a dump truck, and some alleged 3 300 metric tons of lithium ore – could not be found. Naturally, the plaintiff wrote back to the defendant's lawyers, among other things, requesting that the defendant should accompany the plaintiff's officials on their next visit so that he could identify the assets himself.

[23] There was absolutely little or no cooperation from the defendant or his lawyers. In fact there was a complete rebuff. In September 2025 they wrote dismissively as follows:

> "1. Please be advised that mining location do not [sic] have physical address. This is why we furnished you with the Certificate of Registration and the GPS coordinates of the mining location.
>
> 2. With respect, your request is both unreasonable and impossible to perform.
>
> 3. May we recommend that your clients accompany the Sheriff of the High Court, as they have been to this Mining Location on several times and are able to identify the Lithium Ore and the Earth Mining Equipment?"

[24] The defendant or his lawyers or both were belligerent. In November 2025, the lawyers further wrote as follows:

> "1. Your letter dated 14 November refers.
>
> 2. Kindly advise us of the name, employment number and position of the Ministry of Mines official that you visited our client's mining site with.
>
> 3. In addition, may we have the exact date and time of the visit as our client's security records do not show that such visit took place.
>
> 4. In the light of our agreement – that our respective clients would visit the mining site with the Sheriff – we are hard put to understand why your client allegedly went ahead with the visit without the Sheriff and our client's representative in attendance. May we have your explanation on that issue.
>
> 5. It would be remiss of your client to seek to bypass the Court's directive by creating a fictitious visit and advancing a prevarication. Our client's rights are reserved."

[25] By the time of the motion court day on 26 November 2025 aforesaid, the debt was still outstanding. No further effort had been made to satisfy the court order. I formed the distinct impression that the defendant was being stubborn and wilfully avoiding to pay. To signal a wilful disobedience of a court order, a defendant needs not say "I don't want to pay". Refusal to pay can be deduced from an objective assessment of the facts.

[26] On the day of the motion proceedings, the defendant's lawyer was in court. He was unbending. He purported to hide behind the order of this court by MUSHURE J, insisting that until the defendants' assets had been located and a sale in execution attempted, the order for civil imprisonment would be premature. He was not listening to concerns that not only had that order not been complied with, but also that the defendant had just given the plaintiff the run-around. I demanded to know why it should be the plaintiff to be overburdened with locating the defendant's assets for sale in execution when the defendant himself could do that. The defendant was not even asking for time to sell, but was just insisting that the order by MUSHURE J had somehow given him some reprieve.

[27] Upon getting no satisfaction on the defendant's efforts to satisfy the judgment, and after being satisfied that his failure to pay was not because he was indigent, but that he was merely being stubborn, and considering the values, principles and ethos of the Commercial Division in regards to the speedy settlement of disputes, I issued the order of civil imprisonment aforesaid.

[28] I see that true to character, instead of arranging payment of the judgment debt, the defendant has purported to appeal the order of civil imprisonment to the Supreme Court.

19 March 2026



Gill, Godlonton & Gerrans, legal practitioners for the plaintiff
Tamuka Moyo Attorneys, legal practitioners for the defendant